

25VECV02027 25VECV02027

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-09-11

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JENNIFER

JORDAN, an individual; ROBERTO BOLANOS, an individual; SOPHIA QUICHE, a minor by and through their guardian ad litem, JENNIFER JORDAN; JENNIFER QUICHE, a minor by and through their guardian ad litem, JENNIFER JORDAN; MARIA ANDRADE, an individual; MELANIE ANDRADE, an individual; WILFREDO REALES, an individual; YURIDIA ARRIAZA, an individual; JAYDEN ARRIAZA, a minor by and through their guardian ad litem, YURIDIA ARRIAZA; JARED ARRIAZA, a minor by and through their guardian ad litem, YURIDIA ARRIAZA,

Plaintiff,

vs.

STEVE

SARAFIAN, an individual; and DOES 1 through 50, Inclusive,

Defendant.

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CASE NO.: 25VECV02027

ORDER

DENYING PETITIONERS' PETITIONS FOR MINOR'S COMPROMISE

I.

BACKGROUND

Plaintiffs Jennifer

Jordan, Roberto Bolanos, Sophia Quiche, a minor by and through their guardian ad litem, Jennifer Jordan; Jennifer Quiche, a minor by and through their guardian ad litem, Jennifer Jordan; Maria Andrade; Melanie Andrade; Wilfredo Reales; Yuridia Arriaza; Jayden Arriaza, a minor by and through their guardian ad litem, Yuridia Arriaza; Jared Arriaza, a minor by and through their guardian ad litem, Yuridia Arriaza (collectively, "Plaintiffs") filed a habitability action against Defendant Steve Sarafian ("Defendant"). Plaintiff allege they were tenants of residential property located at 6670 Aura Ave, Reseda, CA 91335 (hereafter "Subject Property"). Plaintiffs allege the Subject Property suffered from defects including a severe rodent infestation, mold/mildew, and water leaks. Plaintiffs allege they were forced to leave the Subject Property after a wrongful eviction claim brought by Defendant.

Petitioner Yuridia

Arriaza ("Petitioner") filed the instant petitions for minor's compromise on

behalf of Jayden Arriaza and Jared Arriaza.

Petitioner Jennifer Jordan ("Petitioner")

filed the instant petitions for minor's compromise on behalf of Sophia Quiche and Jennifer Quiche.

II.

PROCEDURAL

HISTORY

On April 10, 2025, Plaintiffs filed a Complaint alleging (1) Breach Of Contract; (2) Statutory Breach Of The Warranty Of Habitability (Civil Code §§1941, 1941.1, And 1942.4); (3) Violation Of Civil Code §1942.4; (4) Violation Of Civil Code §1942.5; (5) Tortious Breach Of The Warranty Of Habitability; (6) Violation Of Business & Professions Code §17200, Et Seq; (7) Private Nuisance; (8) Negligence; (9) Breach Of The Covenant Of Quiet Enjoyment; (10) Intentional Infliction Of Emotional Distress; (11) Breach Of The Covenant Of Good Faith & Fair Dealing; (12) Intentional Misrepresentation; (13) Negligent Misrepresentation; (14) Violation Of The Tenant Anti- Harassment Ordinance LAMC 45.33; and (15) Wrongful Retaliatory Eviction In Violation Of Civil Code Section 1942.5.

On June 11, 2025, Defendant filed an Answer.

On August 19, 2026, Petitioners filed the instant unopposed petitions.

III.

LEGAL STANDARD

An enforceable settlement of a minor's or incompetent's claim requires court approval. (See Prob. Code, §§ 2504, 3500, 3600 et seq.; Code Civ. Proc., § 372.) [1]

Probate

Code § 3600, et seq., governs how the settlement proceeds are to be paid. Pursuant to Probate Code § 3601, the order shall approve

payment of reasonable expenses from the settlement as follows:¿

The court making the order or giving the judgment referred to in Section 3600, as a part thereof, shall make a further order authorizing and directing that such reasonable expenses (medical or otherwise and including reimbursement to a parent, guardian, or conservator), costs, and attorney's fees, as the court shall approve and allow therein, shall be paid from the money or other property to be paid or delivered for the benefit of the minor or incompetent person.

(See
Prob. Code, § 3601(a).)¿

In
cases pursuant to Probate Code § 3601, “unless the court has approved the fee agreement in advance, the court must use a reasonable fee standard when approving and allowing the amount of attorney’s fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability.” (See Rules of Court 7.955(a)(1).) In doing so, “[t]he court must give consideration to the terms of any representation agreement made between the attorney and the representative of the minor or person with a disability and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney’s fee would be affected by later events.” (See id., rule 7.955(a)(2).)

There
are several nonexclusive factors a Court may consider in determining a reasonable attorney’s fee. (See id., rule 7.955(b).) Rule 7.955(c) requires that a petition requesting Court approval and allowance of an attorney’s fee under 7.955(a) must include a declaration from the attorney that addresses the factors listed in 7.955(b) that are applicable to the matter before the Court.

“In any case
in which the court orders that funds to be received by a minor or a person with a disability must be deposited in a financial institution and not disbursed without further order of the court, the order must include a provision that a certified or filed endorsed copy of the order must be delivered to a manager at

the financial institution where the funds are to be deposited, and that a receipt from the financial institution must be promptly filed with the court, acknowledging receipt of both the funds deposited and the order for deposit of funds." (See id., rule 7.953(a).)

IV.

ANALYSIS

Because the facts of each petition are substantially similar, the Court will address them together. Claimants Jayden Arriaza, Jared Arriaza, Jennifer Quiche, and Sophia Quiche (collectively, "Claimants") have agreed to settle their claims against Defendant in exchange for \$10,000 each. (See e.g., Jayden Pet. Attach, 11b(5).)[2] Each petition provides: "The Claimant minor suffered personal injury damages and emotional distress from the alleged substandard living conditions plaintiffs experienced at the subject property." (See id., ¶ 6.) Each petition provides that no medical treatment or health care was provided to the Claimant. (See id., ¶ 7.)

For each Claimant, ¿\$2,500.00 of their settlement portion will be used for attorney fees, leaving a balance of \$7,500¿ to be deposited in an insured account at Bank of America Canoga Park Financial Center at 22004 Sherman Way, Canoga Park, California 91303, subject to withdrawal only by authorization of the court. (See id., ¶ 16, 18b(2), Attach 18b(2).) All Claimants filed a proposed order on Form MC-351 and Order to Deposit Money into Blocked Account on Form MC-355.

Claimants' counsel, Frank Chica, attaches a copy of the retainer agreement for each Claimant. (See id., Attach. 17(a).) Chica requests recovery of \$2,500 from each Claimant, comprising 25% of each Claimant's settlement portion. (See id., Attach. 13(a).) Chica attests "The attorneys fee is reasonable under all circumstances with California Rules of Court, Rule 7.955(b)." (Id.)

The Court identifies the following defect. Chica's declaration fails to justify the reasonableness of the fee as he fails to address the factors specified in Rule

7.955(b). (Rules of Court, rule 7.955(b)-(c).) As a result, the Court will continue the matter to October 21, 2026, for counsel to supplement the record with a supplemental declaration.

V.

CONCLUSION

Based on the foregoing, the Court continues the hearing on the Petitions to October 21, 2026, at 8:00 a.m. for counsel to supplement the record with a supplemental declaration which is due by no later than October 9, 2026.

IT

IS SO ORDERED.

DATED: September 11, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.

[2] Defendant has agreed to
settle Plaintiffs' claims in the total amount of \$525,000. Plaintiffs Jennifer Jordan, Roberto Bolanos, Yuridia Arriaza, Wilfredo Reales, Maria Andrade, and Melanie Andrade will collectively receive \$485,000 of the total settlement amount, with \$242,500 to be paid for attorney fees and \$14,207.62 to be paid for expenses. Claimants will collectively receive \$40,000 of the total settlement amount.